

1607
April 29
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5 Eliz. cap. 14

Sentence

Qv, if Lord
Chancellor
has a casting
vote

& afterwards nethersall, vpon a triall for the sayde dette vpon the sayde bonde, deposethe that he did see a true bonde out of w^{ch} he made that Copie; but it Coulede not appeare by any mann^r of prooffe that euer there was any true bonde; and this bonde was therefore sentenced in this Cowrte to be a Forged bonde, but no Forger then found; yet now it was proued that nicholas Leuette, one of the defendauntes, did sealle & delyuer this bonde in his brother's name after his brother was deade; & so was the sentence of the whole Courte that he was the Forger, & had his sentence for his punishement vpon the statute of 5 Eliz., cap. 14.¹ Nethersall & the other defendante, Henry Leuette, were condempned of periurye & forgerye by bothe the cheife Justices, the Lo. Knolles & Lo. of Northampton, & were acqyted by the Lo. Tresorer, lo. Archebishop & the Lo. Chauncellor as a case *non liquet*. 4 againste three: but I haue hearde y^e Lo. Chancellor hathe a Castinge voyce yf there be 4 againste 4 or three againste three, but what this Judgemente will prooue to be *Quere*; for it was well sayde by them that it were better to acquite 20 that are guyltie then Condempne one Innocente.'

1607
May 1

In Camera Stellata, coram Consilio ibidem, Veneris, 1^o Maij, 1607.²

MARGERIE
v.
DRUE
Forgery
[p. 303]

Forgery of a
will

Cause of hearing between Margerie, plaintiff, and Henry Drue, brewer and Mayor of Boston,³ defendant, for the forgery of the will of Richard Margerie, deceased. 'The defend^{te}, as he Confessed by his aunswear, Comminge to Richarde Margerie when he was sycke, he gaue him instructions by worde onelye to make his will; w^{ch} the defend^{te} did not then wryte any thinge; & the sayde Rych^d Margerie, w^{thin} 2 howers after suche instructions gyuen, dyed, & the defendante, w^{thin} 14 dayes after, wrote downe a formall wille as any Lawyer Coulede make, & sette

¹ For the punishment see Appen-
dix X.

² Eight Councillors and Judges

were present.

³ He was Mayor of Boston in
1595.